

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable David A. Silberman
800 North Humboldt Street, San Mateo, CA 94401
Department 11, Courtroom G
Monday, September 21, 2026 at 2 pm

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing to the newly assigned department pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept11@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 964 0802 Password: 734616

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
02:00 PM	
23-CIV-04063	MARIGOLDYZP I LLC VS. 88 TUSCALOOSA AVE LLC, ET AL.
LINE 1	
MARIGOLDYZP I LLC	STEPHEN D. PAHL
ALI SADEGHI	MATTHEW S. KENEFICK

DEFENDANTS/CROSS-DEFENDANTS: ALI SADEGHI AND 88 TUCALOOSA AND EIGHTY8 HOME LLC'S MOTION TO COMPEL PLAINTIFF TO CONTINUE TO ARBITRATE AND STAY LITIGATION

TENTATIVE RULING:

Pursuant to a September 11, 2026 stipulated Order, the September 21, 2026 hearing on Defendants' motion to compel was previously VACATED.

02:00 PM

24-CLJ-06011

WELLS FARGO BANK, N.A. VS. HECTOR MARTINEZ SANCHEZ

LINE 2

WELLS FARGO BANK, N.A.
HECTOR MARTINEZ SANCHEZ

EDGAR B. LOPEZ
PRO PER

PLAINTIFF: WELLS FARGO'S MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED

TENTATIVE RULING:

The unopposed motion is denied without prejudice for lack of proof that defendant was given proper notice of the hearing date. The proof of service indicates the moving papers were served by mail on December 23, 2025. The motion was filed on December 26, 2025, at which time the hearing date on the notice of motion was changed to September 21, 2026. To date, the court's record does not reflect the filing or service of an amended notice.

If, however, Plaintiff notices its appearance, appears and provides proof that Defendant was given proper notice of the hearing date, the motion would be granted. Plaintiff has provided sufficient proof of serving the underlying discovery and the declaration of Edgar B. Lopez states that no response has been received to date.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court and will be reflected in the minutes. No formal order will follow.

02:00 PM

25-CIV-00841 SAMUEL DOWOON LEE VS. SUNIL EVANS, ET AL.

LINE 3

SAMUEL DOWOON LEE
SUNIL EVANS

QUINLAN S. TOM
JONATHAN D. KINTZELE

PLAINTIFF: SAMUEL DOWOON LEE'S DEMURRER TO CROSS-COMPLAINANTS MARVIN EVANS, SUNIL EVANS, AND GRAND ELECTRIC AND CONSTRUCTION INC.'S CROSS-COMPLAINT

TENTATIVE RULING:

Plaintiff/Cross-Defendant Samuel Doowon Lee's Demurrer to each cause of action in the Cross-Complaint of Marvin Evans, Sunil Evans, and Grand Electric and Construction, Inc. is SUSTAINED-in-part with leave to amend, as to the Second Cause of Action for Fraud in the Inducement, Fourth Cause of Action for Fraud, and Ninth Cause of Action for Negligent Misrepresentation, Tenth Cause of Action for Conversion, Eleventh Cause of Action for Intentional Interference, Twelfth Cause of Action for Negligent Interference and Thirteenth Cause of Action for Unjust Enrichment; SUSTAINED-in-part without leave to amend as to the First Cause of Action for Conspiracy, Seventh Cause of Action for Negligence and Fourteenth Cause of Action for Preliminary Injunction; and OVERRULED-in-part, as to the remaining causes of action as follows:

First Cause of Action for Conspiracy

Conspiracy is not an independent cause of action; it is a theory for extending tort liability to multiple defendants who already owe a duty. (*Applied Equip. Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal. 4th 503; *Faunce v. Cate* (2013) 222 Cal. App. 4th 166.) Cross-Complainants concede the point. (Opp. at p. 6.)

The Demurrer to this cause of action is accordingly SUSTAINED without leave to amend.

The Fraud Causes of Action – Second Cause of Action for Fraud in the Inducement, Fourth Cause of Action for Fraud, and Ninth Cause of Action for Negligent Misrepresentation

Fraud must be pled with specificity, and facts must be alleged showing “how, when, where, to whom, and by what means the representations were tendered,” with heightened requirements where the defendant is a corporation, or speaks for a corporation. (*Cansino v. Bank of Am.* (2014) 224 Cal. App. 4th 1462, 1469, quoting *Lazar v. Superior Ct.* (1996) 12 Cal. 4th 631, 638.) The same specificity governs fraudulent concealment, though the inquiry shifts to the concealment elements (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1.) Negligent misrepresentation is a species of fraud subject to the same particularity standard.

Here, the alleged misrepresentations are written warranties Lee personally signed. Where the alleged misrepresentation is embodied in a signed instrument, the enhanced pleading burden can be met by the document itself, which supplies the content, date, and place of the representation, with the defendant possessing superior knowledge of its preparation. (*Boschma v. Home Loan Ctr., Inc.* (2011) 198 Cal. App. 4th 230.) Particularity is also relaxed “when the facts lie more in the knowledge of the opposite party.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal. App. 4th 153, 158, quoting *Turner v. Milstein* (1951) 103 Cal.App.2d 651, 658.)

The Stock Purchase Agreement signed by Lee on May 11, 2023, at Sections 9(c)(i) and 9(h)(ii), supplies the who, what, when, and where as to Plaintiff/Cross-Defendant Lee. (Cross-Complaint, ¶¶45-53.) However, a false-promise or false-warranty theory requires more than nonperformance and a plaintiff must allege facts showing the promisor did not intend to perform, or knew a statement was false when it was made. (*Beckwith v. Dahl* (2012) 205 Cal. App. 4th 1039.) The Cross-Complaint does not allege contemporaneous facts of a present intent not to perform. Additionally, it does not allege the element of falsity with specificity.

The Demurrer to these causes of action are accordingly SUSTAINED with leave to amend.

Third Cause of Action for Breach of Fiduciary Duty

The elements of a cause of action for breach of fiduciary duty are (1) a fiduciary relationship, (2) breach, and (3) damages. (*Coley v. Eskaton* (2020) 51 Cal. App. 5th 943; *Gutierrez v. Girardi* (2011) 194 Cal. App. 4th 925.) Corporate officers and directors owe fiduciary duties of care and loyalty to the corporation. (*Coley v. Eskaton, supra*, 51 Cal. App. 5th 943; *Oakland Raiders v. Nat’l Football League* (2005) 131 Cal. App. 4th 621.) A corporation may sue its own officer directly when properly authorized. (*Anmaco, Inc. v. Bohlken* (1993) 13 Cal. App. 4th 891.) Cross-Complainant Grand Electric, alleges that Plaintiff/Cross-Defendant Lee served as its CEO, President, and RMO and breached his fiduciary duties by falsifying records and directing unlawful operating procedures. (Cross-Complaint, ¶¶61-66.) Those allegations state a direct fiduciary claim for Grand Electric.

Ordinarily a general demurrer does not lie to part of a cause of action, and if any part is properly pleaded the demurrer is overruled. (*Elder v. Pac. Bell Tel. Co.* (2012) 205 Cal. App. 4th 841.) Plaintiff/Cross-Defendant Lee argues that where multiple plaintiffs bring a claim and one plaintiff lacks standing a demurrer may be sustained as to that plaintiff, and that the demurrer should be sustained as to Cross-Complainants Sunil Evans and Marvin Evans. A former seller in an arm’s-length stock purchase owes the buyer no fiduciary duty; a mere contract or debt does not create a fiduciary relationship. (*Bank of Am. Corp. v. Superior Ct.* (2011) 198 Cal. App. 4th 862; *Oakland Raiders v. Nat’l Football League* (2005) 131 Cal. App. 4th 621; *Santos v. Wing* (1961) 197 Cal. App. 2d 678.) Cross-Complainants do not dispute that Sunil Evans and Marvin Evans were not personally owed a fiduciary duty by Plaintiff/Cross-Defendant Lee. However, the proper vehicle to attack the portion of the cause of action that is raised by the individual cross-complainants is via a motion to strike. (See *PH II, Inc. v. Superior Ct.* (1995) 33 Cal. App. 4th 1680.)

The demurrer to this cause of action is accordingly OVERRULED. However, if Cross-Complainants do amend, they should seriously consider removing Sunil Evans and Marvin Evans as complainants on this cause of action to avoid a clearly meritorious motion to strike.

Fifth and Sixth Causes of Action for Breach of Contract and Breach of the implied covenant

Plaintiff/Cross-Defendant argues only that these causes of action sound in fraud and must be pleaded with particularity. (MP&A ISO Demurrer, at p. 13:1-18.) As Cross-Complainant's argue, a breach of contract claim requires only a contract, plaintiff's performance or excuse, breach, and damages, and may plead the agreement by attachment, and it need not be pleaded with particularity. (See Opp., at p. 5.)

The demurrer to these causes of action is accordingly OVERRULED.

Seventh Cause of Action for Negligence

The economic loss rule bars tort recovery for purely economic losses between contracting parties where the claim is not independent of the contract. (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal. 5th 905.) Its exceptions are confined to intentional fraud and fraudulent concealment; the rule "only applies to bar tort recovery for negligently inflicted economic losses." (*Rattagan v. Uber Techs., Inc., supra*, 17 Cal. 5th 1, 38.) *Robinson Helicopter* rested expressly on affirmative intentional misrepresentation, and it refers to case law which warns that if every negligent breach gave rise to tort damages the limitation would be meaningless. (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal. 4th 979.)

This claim seeks only economic damages from the stock-purchase transaction and Cross-Complainants concede it is "in substance" negligent misrepresentation. (Cross-Complaint, ¶109; Opp. at p. 8:7-10.) That concession is fatal both because ordinary negligence is barred by the rule and because, to the extent the count is one for negligent misrepresentation, it duplicates the Ninth cause of action. Because no amendment converts an ordinary negligence count for economic loss into a viable independent tort, the demurrer is well taken and Cross-Complainants have not shown that the defect can be cured by amendment.

The Demurrer to this cause of action is accordingly SUSTAINED without leave to amend.

Eighth Cause of Action for UCL Violation

Plaintiff/Cross-Defendant Lee argues that this cause of action is derivative of the fraud causes of action. (MP&A ISO Demurrer, at p. 13:1-18.) However, Cross-Complainants plead economic injury from an inflated purchase price, and the unlawful prong of the UCL claim addresses violations beyond those alleged in the fraud causes of action. (Cross-Complaint, ¶¶111-116.)

The Demurrer to this cause of action is accordingly OVERRULED.

Tenth Cause of Action for Conversion

Money is convertible only where a specific, identifiable sum is involved, and a conversion-of-money claim lies only where the defendant interferes with the plaintiff's possessory interest in that sum; the simple failure to pay money owed is not conversion, and recognized cases involve defendants who "misappropriated, commingled, or misapplied specific funds held for the benefit of others." (*Voris v. Lampert* (2019) 7 Cal. 5th 1141, 1152.) The Cross-Complaint alleges that Plaintiff/Cross-Defendant Lee sent notices directing customers to pay him and served a stop notice, but it does not allege that any

customer paid Lee or that Lee took possession or control of any identifiable fund. (Cross-Complaint, ¶¶124-129.) The Cross-Complaint is therefore insufficient as pleaded as to this cause of action.

The Demurrer is accordingly SUSTAINED with leave to amend as to this cause of action.

Eleventh and Twelfth Causes of Action for Intentional Interference with Prospective Economic Advantage and Negligent Interference with Prospective Economic Advantage

Each of the challenged causes of action here require actual disruption of an economic relationship, and the intentional tort additionally requires an act independently wrongful apart from the interference itself. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal. 4th 1134.) The Cross-Complaint alleges Lee's letters and stop notice but pleads no facts that any customer breached, terminated, or altered its dealings with Grand Electric; unilateral correspondence asserting a disputed claim is not actual disruption. (Cross-Complaint, ¶¶130-140.) The pleading is further muddled by alleging that the cross-defendants were "parties to a contract with Cross-Complainants" and that the disrupted relationship was "with Cross-Defendants," which appears to conflate the parties. (*Id.*, at ¶¶132, 138.) A party to a contract cannot be liable for interfering with that contract. (*Applied Equip. Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal. 4th 503; *Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989.)

The Demurrer is accordingly SUSTAINED with leave to amend as to these causes of action.

Thirteenth Cause of Action for Unjust Enrichment

Unjust enrichment is not itself a cause of action but is construed as a quasi-contract claim for restitution. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal. App. 4th 221.) Such a claim does not lie where an express binding contract governs the same subject matter. (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal. App. 4th 1342.) But restitution may be sought where the express contract was procured by fraud or is void, and a plaintiff may plead quasi-contract in the alternative when it disputes the contract's validity. (*Rutherford Holdings, LLC v. Plaza Del Rey*, supra, 223 Cal. App. 4th 221.)

Cross-Complainants plead fraud in the inducement and expressly seek rescission. (Cross-Complaint, ¶122.) This places the Stock Purchase Agreement's validity in dispute and supports pleading a theory of quasi-contract in the alternative. However, Cross-Complainants affirm the Stock Purchase Agreement and seek to enforce it without disaffirming it. The pleading as drafted is therefore subject to demurrer.

The Demurrer is accordingly SUSTAINED with leave to amend as to this cause of action.

Fourteenth Cause of Action for Preliminary Injunction

A preliminary injunction is an interim remedy to preserve the status quo, not a cause of action. (*Siskiyou Hosp., Inc. v. Cnty. of Siskiyou* (2025) 109 Cal. App. 5th 14.) Cross-Complainants concede the point. (Opp., at p. 8:18.) Because injunctive relief cannot be repleaded as a standalone claim, the cause of action is subject to demurrer without leave to amend, though the substantive allegations may properly be relocated to an amended pleading's prayer for relief.

The Demurrer to this Cause of Action is accordingly SUSTAINED without leave to amend.

Demurrer for Uncertainty as to Each Cause of Action

The Cross-Complaint is not so uncertain that Cross-Defendants cannot reasonably respond.

The Demurrer on this basis is accordingly OVERRULED.

Cross-Complainants may file a First Amended Cross-Complaint within ten days of notice of entry of this order.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the moving party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CIV-02754 JOSE SALVADOR TINAJERO VS. ESTELA BELLO, ET AL.

LINE 4

JOSE SALVADOR TINAJERO
ESTELA BELLO

GREGORY C. CATTERMOLLE
GERALD T. LAU

DEFENDANTS: ESTELA BELLO AND OFELIA BELLO'S MOTION AND MOTION TO COMPEL RESPONSES TO DEFENDANTS' FIRST SET OF FORM INTERROGATORIES, REQUEST FOR PRODUCTION OF DOCUMENTS, REQUEST NOS. 1-28, AND REQUESTS FOR ADMISSION, REQUEST NOS. 1-14; REQUEST FOR MONETARY SANCTIONS

TENTATIVE RULING:

The motion is moot. The declaration of Gregory Cattermole establishes that discovery responses have been served. Defendants' request for sanctions is DENIED. While normally the Court would issue sanctions (although a substantially lower amount than sought), the Declaration of Greg Cattermole supports the Court's conclusion that issuance of sanctions would be unjust under the specific circumstances of this motion.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court and will be reflected in the minutes. No formal order will follow.

02:00 PM

25-CIV-07999 BRIAN TAUSSIG, ET AL. VS. GEORGE H. OGATA, ET AL.

LINE 5

BRIAN TAUSSIG
GEORGE H. OGATA

JAIME C. UZIEL

ORDER TO SHOW CAUSE HEARING FOR DEFENDANT TO SHOW IT HAS AN ATTORNEY REPRESENTING IT OR WHY ITS ANSWER SHOULD NOT BE STRICKEN AND DEFAULT ENTERED IN FAVOR OF PLAINTIFFS AND AGAINST DEFENDANT AND DEFENDANT'S PRIOR MOTION TO EXPUNGE LIS PENDENS.

TENTATIVE RULING:

The June 30, 2026 Order to Show Cause is DISCHARGED and Defendant's prior fully briefed motion to expunge the Lis Pendens previously set for June 22, 2026 and taken off calendar is reset for October 5, 2026 and is DENIED.

On June 30, 2026, the Court ordered Defendant Roberta Shong to show that she has retained an attorney to represent her in her capacity as trustee of the Ogata Family Trust ("Trust") in this matter or to show cause why her responsive pleading should not be stricken and her default entered. Shong, as well as Plaintiffs Brian Traussig and Meaghan Ann Joyce, have filed responses.

In general, "a trust is not a person but rather a fiduciary relationship with respect to property." (*Moeller v. Superior Court* (1997) 16 Cal.4th 1124, 1132, fn. 3.) "For that reason, the trustee, rather than the trust, is the real party in interest in litigation involving trust property." (*Id.*)

And, because a trust is not a legal entity, a trustee who appears in court in her capacity as trustee does not represent the trust's interests but either the interests of the beneficiaries or the settlor, depending on whether the trust is revocable. (*Ziegler v. Nickel* (1998) 64 Cal.App.4th 545, 548.) By filing or presenting argument in propria persona on behalf of those interests, therefore, a trustee may be engaged in the unauthorized practice of law, which courts are empowered to prevent. (*Id.* at 549.)

However, a "sole settlor, trustee, and beneficiary" may represent his own interests at trial without an attorney (*Aulisio v. Bancroft* (2014) 230 Cal.App.4th 1516, 1525), and "[a]lthough generally nonattorney trustees cannot appear in propria persona because they are representing the interests of others, a trustee who is also the only settlor and beneficiary 'does not appear in court proceedings concerning the trust in a representative capacity.' [Citation.] Instead, such a trustee 'represents his or her own interests, not someone else's,' and therefore has the right to self-representation. [Citation.]" (*Boshernitsan v. Bach* (2021) 61 Cal.App.5th 883, 894.)

The clear import of these holdings is that the proper analysis of whether a pro se litigant may appear in her capacity as trustee of a trust must include a determination of whose interests the litigant is representing: "*Ziegler* articulates a general rule that nonattorneys who purport to conduct litigation on behalf of others violate the prohibition against the unauthorized practice of law." (*Aulisio*, 230 Cal.App.4th at 1524.) If the litigant represents only his or her own, he or she may proceed without an attorney.

Here, Shong presents evidence in the form of a declaration under penalty of perjury that she is the sole trustee and only beneficiary of an express trust that became irrevocable upon the death of her grandfather, the sole surviving settlor. (Sep. 4, 2026 Response to OSC, p. 6, ¶ 4; *Estate of Giralдин* (2012) 55 Cal.4th 1058, 1071–1072 [trustee’s duty is solely to beneficiary upon death of settlor].) While Traussig and Joyce request that the Court compel further evidence of this fact, their request is based on speculation about the truth of Shong’s statement made under penalty of perjury rather than any evidence of their own. The Court understands Plaintiffs’ concerns because it appears that Shong made a statement in her pleading (“Not once was there ever a question between the neighbors as to the property boundary line.”) that Plaintiffs have demonstrated to be false and which raises questions about Shong’s candor. If Plaintiffs later learn that Shong’s claim under penalty of perjury to be the only person with an interest in trust assets is false, it can re-raise the issue.

The evidence thus shows Shong is only representing her own interest in this matter, she can proceed in *propia persona*. Accordingly, the order to show cause is DISCHARGED.

The Court had previously vacated the hearing on Shong’s April 6, 2026 Motion to Expunge noting “that it was inclined to deny the Motion because Plaintiffs have met their burden of showing a likelihood of prevailing on their real property claim...to give the Defendant an opportunity to obtain counsel[.]” June 29, 2026 Order. Shong has obviously not done so (obtained counsel), the motion was fully briefed and the Court sets it for hearing on October 5, 2026. For the purposes of efficiency, this will also serve as the sole tentative ruling on that motion, which is DENIED.

Plaintiffs met their burden of establishing a likelihood of prevailing. The Grant Deed, which is Exhibit A to the verified Complaint, shows that Plaintiffs are the owners of the property. Plaintiffs also provide a declaration by Gregory Ippolito, who performed the Foresight land survey. (Ippolito Decl.) Ippolito explains that he has a copy of the original subdivision map, of which he provides a copy as Exhibit A. (Id., April 21, 2026 letter.) The subdivision map contained graphical notations for physical reference points called monuments. (Id.) He measured based on the original controlling monuments, the physical roadway and the nearby buildings and fences to find the boundaries. (Id.) He further states that the bearings pointed out by Defendant as different are in fact the same bearings. (Id.) Defendant has not provided any evidence to refute Ippolito’s Declaration. If Shong wishes to argue this portion of the tentative on September 21st and she timely notifies the Plaintiffs and, absent objection, it can be heard on September 21, 2026. But she may not file supplemental briefing or evidence, which would be stricken.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiffs shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

25-CLJ-02641 KARON REID VS. BWNVT MOTORS, INC., ET AL.

LINE 6

KARON REID
BWNVT MOTORS, INC.

MICHAEL A. KLITZKE
JOHN W. RANUCCI

PLAINTIFF: KARON REID'S MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES TO BWNVT, MOTORS INC. DBA SERRAMONTE FORD, SET ONE

TENTATIVE RULING:

Regardless of whether this tentative is contested, the parties are ordered to APPEAR to discuss the other outstanding motions.

The unopposed motion is granted. Defendant shall serve a verified response to plaintiff's Special Interrogatories, Set One, within 14 days. The request for sanctions is also granted. Defendant shall pay plaintiff \$424.22 within 30 days.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the Plaintiffs shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-CIV-00536 ELWYN RAINER VS. PEARLIE M. YOUNG, ET AL.

LINE 7

ELWYN RAINER
PEARLIE M. YOUNG

PRO PER

PETITIONER: ELWYN RAINER'S MOTION TO CONTINUE ALL DEADLINES AND HEARINGS UNTIL SEPTEMBER 30, 2026 TO RETAIN COUNSEL

TENTATIVE RULING:

Plaintiff Elwin Rainer's "Motion for Continuance of All Deadlines and Hearings Until After September 2026," filed June 16, 2026, is DENIED, for each of the following independent reasons:

First, in an Order dated June 24, 2026, the Court already denied Plaintiff's request for a continuance of all hearings and deadlines until after Sept. 2026.

Second, Plaintiff still does not appear to have properly served the Summons & Complaint on the named defendants. (See Proofs of Service, filed Sept. 9, 2026.)

Third, there is no Proof of Service on file showing that this Motion was served on any of the defendants.

Further, given that this Motion is being heard on Sept. 21, 2026, the Motion is essentially moot. The Motion only seeks a continuance until nine (9) days after the hearing.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court and will be reflected by the minutes. No formal order will follow.

**UNLAWFUL DETAINER
LAW AND MOTION CALENDAR**

02:00 PM

26-UDL-00587 THE JOHN STEWART COMPANY VS. LINDA CHRISTINA LUCERO MENDIETA
LINE 8

THE JOHN STEWART COMPANY
LINDA CHRISTINA LUCERO MENDIETA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: THE JOHN STEWART COMPANY'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Vacated as moot as terminating sanctions were granted on September 14, 2026

02:00 PM

26-UDL-00598 THE JOHN STEWART COMPANY VS. ELIANA MEDINA

LINE 9

THE JOHN STEWART COMPANY
ELIANA MEDINA

MERCEDES A. GAVIN
PRO PER

PLAINTIFF: THE JOHN STEWART COMPANY'S MOTION FOR SUMMARY JUDGMENT AGAINST: ELIANA MEDINA

TENTATIVE RULING:

Vacated as moot as terminating sanctions were granted on September 14, 2026



POSTED: 3:00 PM